WHITE PAPER · PORTFOLIO AND AI GOVERNANCE

# Your approver will answer for the agent you designed

A sign-off on each AI agent action moves the review of a failure off the agent's design and onto the person nearest it



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THE CENTRAL ARGUMENT

**When you put an AI agent to work, a person approving each consequential action seems to make someone answerable. But the approval step tends to decide who will be found at fault: after a failure the review asks why the approver approved, and the limits you set for the agent get less attention. That holds even for a careful approver, who checks single actions, not your limits. Test each approval step with known-wrong actions mixed into real work, set up so they cannot take effect. Keep it where it catches them, narrow the agent elsewhere, and write down that any failure review starts with the agent's limits.**

You are putting an AI agent to work in a process. It can issue refunds, change orders or update customer records. You follow the standard design. A person approves each consequential action. The agent's permissions are kept to the minimum. There is a way to stop it, and someone is named as accountable. You know that a person who approves hundreds of actions a day can turn into a rubber stamp. So you plan training, spot checks or a cap on how much one person approves.

You expect the approval step to do two jobs. It should catch the agent's mistakes. And it should make someone answerable, because a person signed.

The second job does not work the way it looks. The approval step tends to decide who will be found at fault. When an approved action goes wrong, the record shows a person who could have stopped it, and the review usually asks why they approved. The choices that caused the error get less attention: what the agent was allowed to do, with what data and within what limits. Those are your choices. This happens even with a careful approver, because an approver checks single actions, not the limits you set.

So test each approval step before you rely on it. Mix actions you know are wrong into the approver's normal queue, set up so they cannot take effect, and see how many the approver stops. Keep the step where it catches them. Where it does not, narrow what the agent may do on its own. And write down, before the agent starts, that any failure review begins with the agent's limits, not with the approver.

ARGUMENT AT A GLANCE

### Who answers when an approved agent action fails

**Where the blame lands**

The review asks why the approver approved; the agent's limits get less attention.

**Two kinds of answerability**

The approver answers for checking; whoever sets the limits answers for the limits.

**What to do**

Test each approval step with known-wrong actions that cannot take effect; keep it where it works, narrow the agent elsewhere.

Applies where a person approves an AI agent's actions; strongest where a failure is visible and judged quickly.

## What the approval step catches

Most owners already know the first job is weak. Ben Green reviewed 41 rules that require people to oversee government algorithms, along with the research on how people actually oversee them [1]. People tend to defer to the system. They misjudge when to override it. An explanation of how the system reached its answer can raise their trust even when the answer is wrong. Training is meant to fix this, but the tendency to defer persists even after training and explicit instructions to check [1].

Now suppose your approvers are good and the check works. That still leaves the second job: whom the step makes answerable.

## Where the blame lands

Madeleine Clare Elish studied what happens to blame when a system run jointly by people and machines fails [2]. Her name for the pattern is a "moral crumple zone." A car's crumple zone absorbs the force of a crash to protect the driver. In these systems, the nearest person absorbs the blame, and the technology is kept faultless.

Her clearest example is how autopilots are certified. An autopilot counts as working correctly as long as it gives the pilot the required time to take control. So when a failure lies between the pilot and the machine, the certification finds nothing wrong with the machine. In Elish's words, "the only possible malfunction, systemically, is the human pilot."

Her cases follow the same line. At Three Mile Island in 1979, the control room had no direct reading of the cooling water level. The operators "made incorrect decisions because they had incorrect information" [2]. News coverage centered on human error. The presidential commission named problems in the system as well, but it emphasized human failures. In 2018 a self-driving Uber car killed a pedestrian. Its software misclassified her, and its automatic emergency braking had been switched off. The safety driver had been looking down, perhaps at the screen used to monitor the car, perhaps at her phone. Elish wrote that she might face criminal charges. Elish does not claim the driver did nothing wrong. Her point is that people do this role badly: watching, then taking over at the last moment. And the role was where the blame went.

Elish also describes a feature Tesla proposed in 2015. Before the car changed lanes in self-driving mode, the driver would "sign off" by clicking a turn signal indicator. In Elish's reading, the human "retains all responsibility" [2]. This paper's reasoning is that an agent's approval step has the same shape. The design allows the agent's proposal to be wrong, because a person decides. So when a review asks which part failed to do what the design expected, the easiest answer it finds is the approval. The approver is a weak check, and also the place the blame is built to land.

This is a tendency, not a law. Elish found it where a failure is visible and judged quickly. It is weaker where harm surfaces slowly and is studied with care. With the Therac-25 radiation machine in the 1980s, the harm came to light slowly, and by then inquiry had put the fault with the maker [2].

Many organizations run blameless reviews that look for causes in the system rather than someone to punish. That helps, and it is the slow, careful kind of review in which the pattern weakens. But a blameless review still asks which part failed to do what the design expected. If the design says the agent proposes and a person decides, that design points the review at the decision. A chart of who is responsible does not settle this either. The chart records who signs, not who could see and change the cause. Naming an accountable owner does not settle it. That owner answers for the agent's results in general. After a specific failure, the review still starts where the record shows a decision: the approval.

## What the review stops looking at

Green argues for a second effect, one that holds even when the person overseeing the system does the job well [1]. A reviewer judges one decision at a time and cannot judge how the system was set up. A rule that requires their review still makes the system look safe to adopt. That lowers scrutiny of the people who did set it up. In his words, such rules "shift accountability for algorithmic harms from agency leaders (who determine the structure of algorithmic systems) to frontline human operators." Even if the oversight

were reliable, he argues, the rules would still weaken the accountability of leaders and vendors. Those responsible can praise the system's precision and, when it fails, point to the human review.

Detroit shows how this plays out. In 2020 a facial recognition match led police to arrest the wrong man. The companies that made the system blamed the investigation. The detective and the commanding officer were disciplined. The police chief said, "it wasn't facial recognition that failed." Green grants that the officers could have investigated more carefully. In his account, the tool was poorly tested and known to be less accurate on Black faces. The leaders and vendors who chose it were more responsible than the officers who used it [1].

Green writes about public agencies. Carrying his point to a company's agent is this paper's reasoning, but the parts line up. Your choices about what the agent may do, with what data and within what limits, are what Green calls the structure. And you pay when the review stops at the approver. A review that blames the approver leaves the cause in place, and the same error comes back under the next approver. That person inherits limits they did not set and a record that will point at them next.

So the step you added to make someone answerable makes your own choices less answerable.

## Two kinds of answerability

The strongest objection is that holding the approver answerable keeps them careful, and there is evidence for it. Kathleen Mosier, Linda Skitka and colleagues studied student and commercial pilots. Those who felt accountable for how they used the automation checked it more and made significantly fewer errors with it [3]. They answered for their way of checking, not for outcomes. The EU AI Act points the same way. For high-risk systems, it requires organizations to give oversight to people "who have the necessary competence, training and authority, as well as the necessary support" [4].

Both point to answerability for checking, given the means to check. Neither makes the checker answerable for what they could not see or change. And Green's effect holds even for a careful checker.

Answerability should follow control: each party answers for what they could see and change. The approver answers for how well they checked, once they have the time, the information the agent used and the authority to refuse. The owner, meaning the person who decides what the agent may do and can stop it, answers for those limits. A vendor answers for what it built and promised. Naming the approver as the accountable person folds all of this into one signature.

## What the approval step is for

An approval step earns its place where it catches the agent's errors, and you can test that. Green's own remedy is not to remove human oversight. It is to require evidence, before a system is adopted, that any human oversight actually works [1].

The test here is this paper's recommendation, not a finding from these sources. Mix actions you know are wrong into the approver's normal queue, set up so they cannot take effect. Give the approver only the time and information they really have. Count how many they stop, and keep testing after launch.

Where the step catches them at a rate you accept for that action, it does its first job, and holding the approver answerable for checking is fair. Where it does not, the step catches little, and its main effect is to move the review off your design. There, narrow what the agent may do on its own until the mistakes it can make unsupervised are ones you accept. Also check that monitoring works and that the stop works. Even where the step works, keep the written rule below, because a careful approver still cannot see your limits.

This is not a choice between approvals and none. Most agents will need a mix by action: approvals where they are shown to work, and narrower limits elsewhere. Where law or contract requires an approval, keep it. Give the approver time, information and authority, and test again.

## Before the agent starts

Write down three things. First, who decides what the agent may do and can stop it; that person answers for its limits. Second, which actions need approval, and the test result that justifies each one. Third, that any failure review starts with the agent's permissions, rules, data and limits, and reaches the approver's checking only after that.

Then the approval step catches what it can, and a failure review is far more likely to look at the choices you made.

## Sources

1. Ben Green, University of Michigan. The Flaws of Policies Requiring Human Oversight of Government Algorithms (Computer Law & Security Review, 2022).
2. Madeleine Clare Elish, Data & Society. Moral Crumple Zones: Cautionary Tales in Human-Robot Interaction (Engaging Science, Technology, and Society, 2019).
3. Kathleen Mosier, Linda Skitka and colleagues, NASA Ames. Decision Making in a High-Tech World: Automation Bias and Countermeasures (1996).
4. European Union. Regulation (EU) 2024/1689 (AI Act), Article 26.